



File No: EXP202301072

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the right to erasure before REJER CLUBCAZA, S.L. (hereinafter, the respondent) without receiving the legally established response to his request. The claimant, a forest ranger, complains against the media for publishing, alongside a news article, a video that disseminates his image and the license plate of his personal and professional vehicle without his consent. The claimant believes that, aside from the informative purpose of the media, unnecessary data has been disseminated that allows for his rapid identification, causing him to lose contracts as a forest ranger.

***URL.1

Publication of ***DATE.1 with the headline: "(...)".

The claimant requested the removal from the respondent media (through the enabled channel) on 25/10/22, stating that he had not received a response up to that date. In the request submitted, the claimant acknowledges that the originally published video has been modified, as the license plate of his vehicle and the faces of the other two people appearing in it are no longer disseminated, along with the claimant whose image continues to be disseminated.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The document submitted by the respondent, in summary, states that

"First.- The possible advertising damages in media publications do not pertain to the publication itself, but to illegal forms of action. This is not the case in the situation claimed, as the publication adheres to the legally established norms and forms when it concerns either public officials or professionals who may have or, as in this case, deserve notoriety. The standards of public or social relevance are met - as is the case while scrupulously adhering to the required truthfulness. It should be noted regarding the social relevance of the situation developed, that the claimant himself acknowledges in the description of facts provided in Annex I, that the vehicle in question and claimed has serigraphy and insignias and badges that seek its notoriety and public recognition.

Second.- Contrary to what is stated in the complaint, no information or personal content unrelated to the specific news subject of the complaint has been taken, which would require the express consent of the affected party, as all the claimed content is strictly related to a matter of public interest.

Third.- It is the Constitutional Court itself that establishes in its rulings the circumstances under which an image of an anonymous citizen can be published without prior consent, as the claimant's participation is "main or protagonist," whereby the fundamental right to image in these cases must yield to the right to information, precisely due to the non-accessory role assumed by the subject himself.

Fourth.- The Constitutional Court also recognizes in events with penal implications their character as newsworthy occurrences, even regardless of the nature of the private subject of the affected person by the news, as long as the data - as occurs in this case - has public interest and relevance for the information that is allowed to be transmitted as long as it is truthful - based on the principle of diligence. Doctrine of the Constitutional Court. (STC 158/2003, of September 15, 2003).

Fifth.- Likewise, and in the same sense, it is established as an exception to the need for consent to publish photographs or videos when they are made in actions authorized or agreed upon by the Authority, or those that seek to comply with what is agreed by law."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on February 28, 2023, for

the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days, they could present any allegations they deemed appropriate.

Due to the lack of notification, the instructor of the procedure to whom the admission for processing was assigned proceeded to send the respondent a copy of that resolution of admission for processing so that they would be aware of it and not cause defenselessness.

The respondent has submitted a document to this Agency stating that their allegations have been manipulated, as only five of the ten points they presented have been included.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints lodged by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The outcome of this forwarding did not allow for the satisfaction of the complainant's claims.

Consequently, on February 28, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Data Protection Agency decided to admit the complaint for processing. This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

It is not deemed appropriate to clarify administrative responsibilities within the framework of a

sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the complainant.

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the interested party, and to express their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or

replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

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V

Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency, but has not demonstrated that it has addressed the request made by the complainant, sending the required response to their request, as established in Article 12.4 of the LOPDGDD.

Thus, it cannot be accepted that the response that should be given can be manifested merely as part of an administrative procedure, such as the submission of allegations in the context of this procedure, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in cases where there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or, where appropriate, to deny the request with reasons indicating the causes for which the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the complainant informing them about the decision taken regarding the exercise of rights request is attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. as it is considered that the provisions of Article 17 of the GDPR have been infringed and to urge REJER CLUBCAZA, S.L. with NIF B83540658, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the causes for which it is not appropriate to address the request, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could constitute an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1(m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to REJER CLUBCAZA, S.L.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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